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AS AMENDED

BILL NO. 2988

and

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[ environment - natural resources - Terry Peach North
Canadian Watershed Restoration Act - pilot program -
definitions - program - North Canadian Watershed
Restoration Revolving Fund - purpose - effective date
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~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

SECTION 1. AMENDATORY Section 1, Chapter 372, O.S.L.
2023 (27A O.S. Supp. 2025, Section 3-8-101), is amended to read as
follows:

Section 3-8-101. This act shall be known and may be cited as the "Terry Peach ~~North Canadian Watershed~~ Water Restoration Act".

SECTION 2. AMENDATORY Section 2, Chapter 372, O.S.L.
2023 (27A O.S. Supp. 2025, Section 3-8-102), is amended to read as
follows:

Section 3-8-102. A. As used in the Terry Peach ~~North Canadian~~
Watershed Water Restoration Act:

1 1. "Commission" means the Oklahoma Conservation Commission;

2 2. "Harmful woody species" means a tree or shrub species that
3 is rapidly encroaching into adjoining lands and is likely to cause
4 harm to the environment or economy. Harmful woody species include,
5 but are not limited to, *Juniperus virginiana* (Eastern Redcedar),
6 *Juniperus scopulorum* (Rocky Mountain juniper), *Juniperus monosperma*
7 (oneseed juniper) ~~and~~, *Tamarix ramosissima* (salt cedar), *Juniperus*
8 *pinchotii* (Redberry juniper), *Juniper ashei* (ashe juniper), and
9 *Prosopis glandulosa* (honey mesquite); and

10 3. ~~"North Canadian Watershed"~~ means ~~the~~ an area of land in
11 Oklahoma that drains or sheds water into ~~the North Canadian River~~ a
12 waterway or water basin.

13 B. There is hereby created a ~~pilot~~ statewide program to remove
14 or eradicate harmful woody species in ~~the North Canadian Watershed~~
15 watersheds to be administered by the Oklahoma Conservation
16 Commission. To accomplish the goals listed in this section, the
17 Commission is authorized to use the funds available in the ~~North~~
18 ~~Canadian Watershed~~ Water Restoration Revolving Fund established in
19 ~~Section 3 of this act~~ Section 3-8-103 of this title. The purpose of
20 the program is to manage and eradicate, where possible, harmful
21 woody species that damage grazing lands, create significant wildfire
22 risk, reduce wildlife habitat and reduce water flow into ~~the North~~
23 ~~Canadian River~~ waterways and water basins.

24 C. In administering the ~~pilot~~ program, the Commission shall:

- 1 1. Cooperate with landowners, state agencies, and other
- 2 political subdivisions for removal of harmful woody species;
- 3 2. Measure the density of harmful woody species and estimate
- 4 water used by those species;
- 5 3. Create a study using a parallel watershed with no control of
- 6 harmful woody species;
- 7 4. Utilize available funds to cost-share with landowners for
- 8 expenses incurred in the eradication of harmful woody species by
- 9 prescribed burn, biological controls, mechanical removal, or
- 10 herbicide applications;
- 11 5. Develop grant programs with conservation districts, rural
- 12 fire departments, and prescribe burn associations for resources
- 13 needed for prescribed burns, mechanical removal, biological control,
- 14 or herbicide applications on harmful woody species;
- 15 6. Bring attention to the problems posed by harmful woody
- 16 species to create awareness, demonstrate value to all stakeholders,
- 17 and encourage landowners to participate in the program; and
- 18 7. Have at least two active project areas in the program, one
- 19 above the Canton Lake dam and one below.

20 D. The Commission is authorized to promulgate any rules and
21 procedures to effectuate the provisions of this section.

22 SECTION 3. AMENDATORY Section 3, Chapter 372, O.S.L.
23 2023 (27A O.S. Supp. 2025, Section 3-8-103), is amended to read as
24 follows:

1 Section 3-8-103. There is hereby created in the State Treasury
2 a revolving fund for the Oklahoma Conservation Commission to be
3 designated the "~~North Canadian Watershed~~ Water Restoration Revolving
4 Fund". The fund shall be a continuing fund, not subject to fiscal
5 year limitations, and shall consist of all monies received by the
6 Conservation Commission from appropriations, federal grants or
7 funds, municipal contributions, private contributions, and any other
8 sources, including interest earned from the income in the fund, that
9 are designated for deposit to such fund or designated for duties
10 associated with harmful woody species removal from ~~the North~~
11 ~~Canadian Watershed~~ watersheds throughout the state. All monies
12 accruing to the credit of said fund are hereby appropriated and may
13 be budgeted and expended by the Conservation Commission to perform
14 the duties imposed on the Commission by law. Expenditures from said
15 fund shall be made upon warrants issued by the State Treasurer
16 against claims filed as prescribed by law with the Director of the
17 Office of Management and Enterprise Services for approval and
18 payment.

19 SECTION 4. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
21 April 6, 2026 - DO PASS AS AMENDED
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